

24STCV23377 24STCV23377

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 24STCV23377 Hearing Date: July 7, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV23377

SAMANTHA

LOPEZ vs CYDNEY HENDERSON

July

7, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT CYDNEY HENDERSON'S MOTION TO COMPEL PLAINTIFF SAMANTHA LOPEZ'S

FURTHER RESPONSES TO FORM INTERROGATORIES, SET ONE; REQUEST FOR SANCTIONS.

RULING:

The Court orders the Motion off calendar as Moot, considering terminating

sanctions of the Order entered on July 1, 2026.

I.

BACKGROUND

The Court incorporates by reference the Background

section of the Minutes entered on April 8, 2025.

On January 13, 2026, the Court filed the "ORDER

GRANTING ATTORNEY'S MOTION TO BE RELIEVED AS COUNSEL".

On January 15, 2026, Defendant filed the Motion to

Compel Plaintiff Samantha Lopez's Further Responses to Form Interrogatories,

Set One; Request for Sanctions.

On June 29, 2026, Defendant filed a Notice

reporting that Plaintiff again has filed no Opposition to a motion.

II.

LEGAL STANDARD

A propounding party's

remedy when it deems objections in discovery responses to be without merit is

to move for an order compelling further responses. (Catalina Island Yacht

Club v. Superior Court (2015) 242 Cal.App.4th 1116, 1127.) If interrogatory

responses lack specificity, then parties may move to compel further responses

under Code of Civil Procedure section 2030.300, subdivision (a), providing for

motions to compel, where parties deem that an answer is evasive, incomplete, or

inadequate as to specification of documents. (Best Products, Inc. v. Superior Court (2004) 119 Cal.App.4th 1181,

1190.) "While the party propounding interrogatories may have the burden of

filing a motion to compel if it finds the answers it receives unsatisfactory,

the burden of justifying any objection and failure to respond remains at all

times with the party resisting an interrogatory." (Williams v. Superior

Court (2017) 3 Cal.5th 531, 541.)

III.

ANALYSIS

Defendant moves to compel

further discovery responses.

The failure to file a

proper and timely opposition in trial court creates a waiver of the issues on

any appeal. (Bell v. Am. Title Ins. Co.

(1991) 226 Cal.App.3d 1589, 1602; Cabrini

Villas Homeowners Assn. v. Haghverdian (2003) 111 Cal.App.4th 683, 693.)

Generally, courts lack

jurisdiction over dismissed parties, with exceptions including awarding costs

and attorneys' fees, and motions to set aside dismissals. (Wong v. Tai Jing (2010) 189 Cal.App.4th 1354, 1364.) A trial judge

was reversed as to discovery orders issued after the case was dismissed,

because they were void due to lack of jurisdiction. (See Fries v. Rite Aid Corp. (2009) 173 Cal.App.4th 182, 183, 189.)

Here, Plaintiff filed no

Opposition to avoid granting, but the Court lost jurisdiction by the discovery

sanction order of dismissal, rendering moot the instant Motion's request for

further discovery responses.

IV.

CONCLUSION

Accordingly, the Court orders

the Motion off calendar, as moot.